

CV 05 3209

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
CHRISTOPHER BRIDGES,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O RICARDO
BOCACHICA (SHIELD #20464) AND P.O. HECTOR
FUENTES (SHIELD#16646)

Defendants.
-----X

VERIFIED COMPLAINT

TOWNES, J.
Index NO.:

POHORELSKY, M. J. 
CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.
★ JUL - 6 2005 ★
BROOKLYN OFFICE

Plaintiff, by his attorney, MALLILO & GROSSMAN, ESQS.,
complaining of the defendant herein, respectfully shows to this
Court, and alleges as follows:

JURISDICTION

1. Jurisdiction is founded upon the existence of a Federal
Question.

2. This is an action to redress the deprivation under color
of statute, ordinance, regulation, custom or usage of a right,
privilege, and immunity secured to plaintiff by the First, Fourth,
and Fourteenth Amendments to the Constitution of the United States
(42 U.S.C. 1983) and arising under the law and statutes of the
State of New York.

3. Jurisdiction is founded upon 28 U.S.C. Sections 1331,
1343 (3) and 1343(4), this being an action authorized by law to
redress the deprivation under color of law, statute, ordinance,

regulation, custom and usage of a right, privilege, and immunity secured to plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States, plaintiff further invokes the supplemental jurisdiction of this Court to adjudicate pendant state law claims pursuant to 28 U.S.C. 1367.

4. The matter in controversy exceeds, exclusive of interest and costs, the sum or value of ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS.

PARTIES

5. That the plaintiff CHRISTOPHER BRIDGES is a resident of the United States and is a resident of the County of BRONX, State of New York.

6. That at all times hereinafter mentioned and upon information and belief, the defendant CITY OF NEW YORK (NYC) and still is a municipal corporation organized and existing under by virtue of the Laws of the State of New York tort law by its servants, agents and employees via the principle of respondent superior as at all times relevant all defendant officers were acting for, upon and in furtherance of, the business of their employer and within the scope of their employment.

7. That at all times hereinafter mentioned, and upon information and belief, the defendant CITY OF NEW YORK, its agents, servants and employees operated, maintained and controlled the NEW YORK CITY POLICE DEPARTMENT, (NYPD), including all the police officers thereof.

8. That the NEW YORK CITY POLICE DEPARTMENT is a local governmental agency, duly formed and operating under and by virtue

of the Laws and Constitution of the State of New York and the Commissioner of the NEW YORK CITY POLICE DEPARTMENT is responsible for the policies, practices and customs of the NEW YORK CITY POLICE DEPARTMENT as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees and is the final decision maker for that agency.

9. This action arises under the United States Constitution, particularly under provisions of the First, Fourth and Fourteenth Amendments of the Constitution of the United States, and under federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983, and the rights guaranteed by the Constitution and laws of the State of New York.

10. Each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants and employees, and each of them not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York, and under the authority of their office as police officers of said state, county and city.

PENDENT STATE CLAIMS

11. That Notice of the plaintiff's claims, the nature of the claims and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the Comptroller of the defendant, CITY OF NEW YORK, on November 12, 2004.

12. That the plaintiff has duly complied with the oral

examination pursuant to Section 50-h of the General Municipal Law.

13. That more than thirty days have elapsed since the Notice of Claim has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

14. That this action is commenced within one year and ninety days after the caused of action arose.

STATEMENT OF FACTS

15. That on August 17 2004 AT APPROXIMATELY 3:00 PM and 4:30 pm in the afternoon plaintiff CHRISTOPHER BRIDGES was lawfully and properly on the exterior of the premises 971 Southern Boulevard County of the Bronx , City and State of New York, the plaintiff was approached by two officers of the New York City Police Department who began questioning him and thereafter without cause, provocation nor in self defense physically assaulted the claimant in the manner of punching, stamping kicking and macing the plaintiff in the face. Said officers were joined by other officers of the New York City Police Department, upon information and belief including Police Officer Ricardo Bocachica Shield # 20464 and Police Officer Hector Fuentes Shield # 16646 Said Officers also upon information and belief engaged in the assault upon the plaintiff. Plaintiff was thereafter taken to Police Precinct 41 where he was detained without cause until August 19, 2004.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
VIOLATION OF THE PLAINTIFF'S RIGHT PURSUANT TO 42 U.S.C. 1983 AND
THE FOURTH AMENDMENT VIA THE USE OF EXCESSIVE FORCE

16. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

17. That the plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. 1983, in that the plaintiff was unlawfully assaulted and battered, by P.O. RICARDO BOCACHIA (SHIELD # 20464), P.O. HECTOR FUENTES (SHIELD # 16646) and unknown police officers associated and employed by the New York City Police Department and The City of New York.

18. As a direct result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the fourth Amendment of the United States Constitution being more particularly plaintiff's right to be free of the use of excessive force.

19. That said assault and battery were caused by P.O. RICARDO BOCACHIA SHIELD (#20464), P.O. HECTOR FUENTES SHIELD (#16646) and unknown Police Officers without authority of the law and without any reasonable cause or belief that the plaintiff was in fact guilty of crimes, and without any legal justification.

20. That by reason of the unlawful assault and battery, plaintiff was subjected to physical pain and tremendous emotional harms.

21. That by reason of the aforesaid, that the plaintiff has been damaged in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS, he is entitled to an award of punitive damages and that an award of attorney's fees is appropriate pursuant to 42 U.S.C. 1988.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF VIOLATION OF THE PLAINTIFF'S RIGHTS PURSUANT
TO NEW YORK STATE LAW BATTERY

22. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

23. That on or about the above dates and times, P.O. RICARDO BOCACHICA (SHIELD #20464), P.O. HECTOR FUENTES (SHIELD #20464) and unknown Police Officers employed by The New York City Police Department and The City of New York, intentionally battered the plaintiff by assaulting the plaintiff and violently throwing him to the ground, and the defendants acted without justification and without the authority of the law; and that the touching of the plaintiff was harmful, uncontested, and unjustified and in so Doing defendants violated the laws and Constitution of the State of New York and otherwise violated plaintiff's rights under the New York Law.

24. That by reason of the aforesaid, committed by the defendants, the plaintiff suffered emotional and bodily injury, and that he was otherwise damaged.

25. That the plaintiff did not consent, acquiesce to or in any way cause the various harms that were inflicted on him.

26. That New York CPLR 1601 does not apply pursuant to the exception provided by CPLR 1602 (1) (b).

27. That by reason of the aforesaid, that the plaintiff has been damaged in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS he is entitled to an award of punitive damages and that an award of attorney's fees is appropriate pursuant to 42 U.S.C. 1988.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NEW YORK STATE TORT CLAIM ASSAULT

28. Plaintiff repeats, reiterates and realleges each allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

29. That on or about the above dates and times, the defendant P.O. RICARDO BOCACHICA SHIELD #20464, P.O. HECTOR FUENTES SHIELD # 16646 and unidentified Police Officers, committed an assault on the plaintiff by causing him to be in apprehension of an immediate battery against him to wit in that the defendants did throw the plaintiff to the ground, and in so doing the defendants violated the laws and constitution of the State of New York and otherwise violated plaintiff's rights under New York law.

30. That by reason of the aforesaid, that the plaintiff has been damaged in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS he is entitled to an award of punitive damages and that

an award of attorney's fees is appropriate pursuant to 42 U.S.C. 1988.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
NEW YORK STATE TORT CLAIM INTENTIONAL INFLICTION OF EMOTIONAL
DISTRESS

31. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with same force and effect as is more fully and at length set forth herein.

32. That the plaintiff's rights have been violated under New York Law in that the plaintiff was subjected to an intentional infliction of emotional distress by P.O. RICARDO BOCACHICA (SHIELD# 20464), P.O. HECTOR FUENTES (SHIELD #16646) and unknown Police Officers who unlawfully assaulted him.

33. That P.O. RICARDO BOCACHICA (SHIELD #20464), P.O. HECTOR FUENTES (SHIELD 16646) and unknown Police Officers conduct was extreme and outrageous.

34. That P.O. RICARDO BOCACHICA (SHIELD #20464), P.O. HECTOR FUENTES (SHIELD# 16646) and unknown Police officers conduct so transcended the bounds of decency as to be regarded as atrocious and intolerable in a civilized society.

35. That the Police Officers conduct directly caused the plaintiff to experience severe emotional harms and he was otherwise harmed.

36. That by reason of the aforesaid, the plaintiff has been damaged in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS he is entitled to an award of punitive damages and that an award of attorney's fees is appropriate pursuant to 42 U.S.C. 1988.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF, NEW YORK STATE TORT CLAIM NEGLIGENCE
HIRING AND RETAINING

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

38. That the defendants, THE CITY OF NEW YORK, P.O. RICARDO BOCACHICA (SHIELD # 20464), P.O. HECTOR FUENTES (SHIELD # 16646) and unidentified POLICE OFFICERS who were supervisors were negligent, careless, reckless, and deliberately indifferent in hiring, retaining, properly training and supervising, as and for its employees, in that the said defendants lacked the experience, deportment and ability to be employed by the defendants, in that the defendants failed to exercise due care and caution in their hiring practices, and in particular, in hiring the defendants employees who lacked the mental capacity and the ability to function as employees of the aforementioned defendants; in failing to investigate the above-named defendants' background in that they hired and retained them as employees; Also in

that the defendants, THE CITY OF NEW YORK P.O. RICARDO BOCACHICA (SHIELD #20464) , P.O. HECTOR FUENTES (SHIELD # 16646) and the unidentified POLICE OFFICERS who were supervisors failed to train their employees in the proper criteria for establishing probable cause to arrest; to control their tempers and exercise the proper deportment and temperament; to use force prudently and only when necessary and to otherwise act as reasonably prudent police officers; failed to give them proper instruction as to their deportment, behavior and conduct as representatives of their department, behavior and conduct as representatives of their employees were otherwise reckless, careless, deliberately indifferent and negligent.

39. That the aforesaid occurrences and resulting injuries to mind and body therefore, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

40. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer physical and mental pain, and the plaintiff has been otherwise damaged.

41. That by reason of the aforesaid, the plaintiff has

been damaged in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS he is entitled to an award of punitive damages and that an award of attorney's fees is appropriate pursuant to 42 U.S.C. 1988.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF NEW YORK STATE TORT CLAIM NEGLIGENCE

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

43. That the defendants was negligent, careless, reckless and deliberately indifferent in that they failed to conduct themselves as reasonably prudent police officers in that the defendants failed to control their tempers and exercise the proper deportments and temperament; to use force prudently and only when necessary; to investigate alleged crimes carefully and prudently; to make arrests prudently and to otherwise act as reasonably prudent police officers; and, in that the defendants, their agents, servants and employees were otherwise reckless, careless, deliberately indifferent and negligent.

44. That the aforesaid occurrences and resulting injuries to mind and body there from, were caused wholly and solely by reason the negligence of the defendants, their

agents, servants and employees without any negligence on the part of the plaintiff.

45. That by reason of the aforesaid, plaintiff has been damaged in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS and that an award of attorney's fees are appropriate pursuant to 42 U.S.C. 1988.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF VIOLATION OF PLAINTIFF'S RIGHTS
PURSUANT TO 42 U.S.C. 1983 AND THE FIRST, FOURTH
AND FOURTEENTH AMENDMENT BY DEFEDANT CITY IF NEW
YORK, MONEY CLAIM

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

47. That the plaintiff's rights have been violated under the First, Fourth and Fourteenth Amendments to the Unites States Constitution by the defendants, City of New York (NYC).

48. Defendants, NYPD, NYC and P.O. RICARDO BOCACHICA (SHIELD #20464), P.O. HECTOR FUENTES (SHIELD # 16646) and as well as other UNIDENTIFIED POLICE OFFICERS who were supervisors and final decision makers as a matter of policy and practice, have acted with a callous, reckless and deliberate indifference to plaintiff's constitutional rights under the constitution and laws of the United States, in that

they failed to adequately discipline, train, supervise or otherwise direct police officers concerning the rights of citizens, thereby causing the defendants officers in this case to engage in the above-mentioned conduct.

49. Defendants, NYPD, NYC, P.O. RICARDO BOCACHICA (SHIELD#20464), P.O. HECTOR FUENTES (SHIELD # 16646) as well as UNIDENTIFIED POLICE OFFICERS who were supervisors and final decision makers as a matter of policy and practice, have with deliberate indifference failed to properly sanction or discipline police officers, including the defendants in this case and especially the defendants who assaulted the plaintiff, for violations of the constitutional rights of citizens, thereby causing defendants in this cause, to engage in the unlawful conduct which did cause the plaintiff to be subjected to deprivations of his civil rights.

50. Defendants NYC, and P.O. RICARDO BOCACHICA (SHIELD #20464), P.O. HECTOR FUENTES (SHIELD#16646) as well as UNIDENTIFIED POLICE OFFICERS as a matter of policy and practice, have with deliberate indifference failed to sanction or discipline police officers including the defendants in this case, who are aware-of and subsequently conceal violations of the constitutional right of citizens by other police officers thereby causing and encouraging police officers, including defendants in this case, to engage in

unlawful conduct.

51. That NYC, as well as P.O. RICARDO BOCACHICA (SHIELD #20464), P.O. HECTOR FUENTES (SHIELD#16646) AND UNIDENTIFIED POLICE OFFICERS have failed to train the defendants in the proper criteria to make an arrest.

52. That NYC, as well as P.O. RICARDO BOCACHICA (SHIELD #20464), P.O. HECTOR FUENTES (SHIELD # 16646) AND UNIDENTIFIED POLICE OFFICERS have failed to train the defendants in how to properly conduct an investigation.

53. That NYC, as well as P.O. RICARDO BOCACHICA (SHIELD#20464), HECTOR FUENTES (SHIELD #16646) AND UNIDENTIFIED POLICE OFFICERS have failed to train the defendants in the defendants in the proper circumstances.

54. That NYC, as well as P.O. RICARDO BOCACHICA (SHIELD#20464), P.O. HECTOR FUENTES (SHIELD#16646) AND UNIDENTIFIED POLICE OFFICERS have failed to train the defendants as to the existence and elements of the affirmative duty of the law enforcement officer to intervene to prevent the preventable violation of citizens' civil rights from being perpetrated by a fellow officer in his or her presence.

55. That NYC, as well as P.O. RICARDO BOCACHICA (SHIELD #20464), P.O. HECTOR FUENTES (SHIELD# 16646) AND UNIDENTIFIED POLICE OFFICERS have failed to train the defendants in the

rights of citizens to the equal protection of the law under the fourteenth Amendment, including but not limited to the right to cross claim after an initial complaint has been made.

56. That as a result of the above, the plaintiff's rights have been violated and he incurred pecuniary, physical and severe emotional harms and was otherwise harmed.

57. That by reason of the aforesaid, plaintiff has been damaged the sum of FIVE MILLION (\$5,000,000.00) DOLALRS and that an award of attorney's fees are appropriate pursuant to 42 U.S.C. 1988.

WHEREFORE, the plaintiff demands judgment against the Defendants in the FIRST CAUSE OF ACTION IN THE sum of \$5,000,000.00, and punitive damages on the Second Cause of Action in the sum of \$5,000,000.00, and punitive damages in the third cause of action in the sum of \$5,000,000.00 and punitive damages in the fifth cause of the action in the sum of \$5,000,000.00 and punitive damages in the sixth cause of action in the sum of \$5,000,000.00 and punitive damages in the seventh cause of action in the sum of \$5,000,000.00 and reasonably attorney's fees pursuant to 42 U.S.C. 1988; together with costs and disbursements of this action; a trial by jury of all issues involved in this complaint; and such other and further relief as this Court may deem just and proper under the circumstances.



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